

CHAPTER 84

War Damaged Sites Act, 1949

ARRANGEMENT OF SECTIONS

Section

1. Power of local authorities to take possession temporarily of certain war damaged land.
2. Extension of period of possession by local authority.
3. Compulsory taking of possession.
4. Use and disposal of land by local authorities.
5. Compensation for compulsory taking of possession.
6. Exclusion of certain enactments.
7. Determination of possession for purpose of development by owner.
8. Compensation for the compulsory acquisition of land in possession of local authority.
9. Power of local authority to do work without taking possession.
10. Modification of Town and Country Planning Act, 1947.
11. War damage payments.
12. Disposal of rubble, etc.
13. Settlement of disputes as to compensation.
14. Suspension of justices' licences.
15. Service of notices.
16. Penalty for depositing rubbish on war damaged sites.
17. Interpretation.
18. Financial provisions.
19. Short title.

SCHEDULE.

Procedure for authorising compulsory taking or retention of possession.

An Act to enable local authorities to take possession of or do work on certain war damaged land; to authorise the conversion of cost of works payments in certain cases; and for purposes connected with the matters aforesaid.
[16th December 1949.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

- 1.—(1) If in the case of any land within the area of a local authority the following conditions are satisfied, that is to say—
- (a) that the land consists of or forms part of a hereditament which has sustained war damage;
 - (b) that the damage has not been made good or has not been wholly made good; and
 - (c) that in consequence of the matters aforesaid the land is in the opinion of the authority in a condition detrimental to the amenities of the neighbourhood,

Power of local authorities to take possession temporarily of certain war damaged land.

the local authority may take a lease of the land by agreement for any term not exceeding five years, or (subject to the next

following subsection) may be authorised by the Minister in accordance with the provisions of this Act to take possession of the land compulsorily for any period not exceeding five years.

(2) A local authority shall not be authorised by virtue of this Act to take possession compulsorily of any such land as is specified in subsection (2) of section one of the Acquisition of Land (Authorisation Procedure) Act, 1946 (which relates to land of local authorities and statutory undertakers, commons, National Trust Land and ancient monuments), or any agricultural land, any church or church site, or any building occupied for the purpose for which it was occupied immediately before the occurrence of the war damage.

(3) In the application of this section to Scotland there shall be substituted for the reference to the Acquisition of Land (Authorisation Procedure) Act, 1946, a reference to the Acquisition of Land (Authorisation Procedure) (Scotland) Act, 1947.

Extension
of period of
possession
by local
authority.

2.—(1) Where a local authority are entitled to possession of any land by virtue of a lease or authorisation under this Act, and it appears to them that after the expiration of the period for which they are so entitled the land is otherwise likely to revert to a condition detrimental to the amenities of the neighbourhood, the authority may take the land on lease for a further term not exceeding five years, or may be authorised by the Minister in accordance with the provisions of this Act to retain possession of the land compulsorily for a further period not exceeding five years.

(2) The powers conferred by this section may be exercised from time to time in relation to the same land, but the total period for which a local authority are entitled to possession of any land by virtue of a lease or authorisation under this Act shall not exceed ten years in all.

Compulsory
taking of
possession.

3.—(1) Authority for the compulsory taking or retention of possession of any land under this Act shall be given by the Minister by means of an authorisation in writing; and the provisions of the Schedule to this Act shall have effect in relation to the giving of such an authorisation.

(2) Subject to the following provisions of this section, the Minister shall not authorise a local authority to take possession compulsorily of any land if it appears to him that any person having an interest in the land will carry out, within a reasonable time, any works necessary to secure that the land is put into a condition which is not detrimental to the amenities of the neighbourhood.

(3) Where objection is made to the giving of any such authorisation as aforesaid on the ground that a person interested in the land is able and willing to carry out such works as aforesaid, the Minister may postpone the giving of the authorisation

for such period as he considers sufficient to enable the works to be carried out, and may, notwithstanding anything in the last foregoing subsection, give the authorisation at the expiration of that period if the works have not then been carried out.

(4) In relation to land of which a local authority are entitled to possession by virtue of an authorisation under this Act, the local authority shall, for the purposes of their functions under this Act, have all the same rights as if the land were vested in them for a term of years absolute in possession equal to the period for which they are entitled to possession of the land as aforesaid.

(5) In the application of this section to Scotland, there shall be substituted in subsection (4) for the words "for a term of years absolute in possession" the words "under a lease granted to them for a period".

4.—(1) Where a local authority are entitled to possession of any land by virtue of a lease or authorisation under this Act, the local authority shall have power to carry out thereon any works which appear to them to be necessary or expedient for securing that the land is put and kept in a condition which is not detrimental to the amenities of the neighbourhood; and it shall be the duty of the local authority either to carry out such works as appear to them to be necessary for the purpose aforesaid, or to secure the carrying out of such works by means of conditions imposed on the grant of a lease of the land under the following provisions of this section.

Use and
disposal of
land by local
authorities.

(2) Subject to the foregoing provisions of this section, the local authority may—

(a) use the land for the purposes of any of the statutory functions of the authority (including the carrying out of any works which they are authorised to carry out under any enactment); or

(b) let the land for any term not exceeding the period for which the local authority are entitled to possession of the land.

(3) Any use of land authorised by this section, or by a lease granted by a local authority thereunder, shall be lawful notwithstanding any easement over the land or any right restrictive of the user of the land; but where the value of an interest of any person in adjoining land is depreciated, or any person suffers damage by being disturbed in his enjoyment of such land, in consequence of any such use as aforesaid, then in so far as the act or omission causing the depreciation or disturbance would have been actionable at his suit if it had been done or omitted otherwise than in the exercise of statutory powers, he may recover from the local authority compensation in respect of the depreciation or damage.

(4) In relation to land of which a local authority are entitled to possession by virtue of a lease under this Act, the provisions of this section shall have effect subject to any covenant or reservation contained in that lease.

(5) In the application of this section to Scotland, for the reference in subsection (3) to an easement there shall be substituted a reference to a servitude.

Compensation
for compulsory
taking of
possession.

5.—(1) Where a local authority take or retain possession of any land compulsorily under this Act, then, subject to the following provisions of this section, the like compensation shall be payable by the local authority as would be payable out of moneys provided by Parliament under section two of the Compensation (Defence) Act, 1939, if possession of the land had been taken on behalf of His Majesty in the exercise of emergency powers within the meaning of that Act during the period mentioned in section one of that Act, and the provisions of that Act shall apply accordingly subject to any necessary modifications.

(2) In calculating for the purposes of the said section two the rent which might reasonably be expected to be paid by a tenant in occupation of the land under a lease—

(a) the term of that lease shall be treated as a term not exceeding the period for which the local authority are authorised to take or retain possession of the land under this Act; and

(b) no account shall be taken of any right of the tenant under the War Damage Act, 1943, to a payment of cost of works in respect of any works for making good the war damage which might be carried out by him during that term.

(3) Where the local authority retain possession of the land by virtue of an authorisation under section two of this Act, no account shall be taken, in calculating the said rent, of any increase in or depreciation of the annual value of the land occasioned by anything occurring during any previous period during which the local authority were entitled to possession of the land under this Act.

Exclusion
of certain
enactments.

6.—(1) The Lands Clauses Acts shall not apply to the taking of a lease of land, or to the taking or retention of possession of land compulsorily, by a local authority under this Act.

(2) The provisions of Part VII of the Local Government Act, 1933, and Part V of the London Government Act, 1939, relating to the appropriation and disposal of land by local authorities shall not apply to land of which a local authority are entitled to possession by virtue of a lease or authorisation under this Act.

(3) Part I of the Landlord and Tenant Act, 1927, shall not apply to any lease granted by a local authority in pursuance of subsection (2) of section four of this Act.

(4) In the application of this section to Scotland, for the reference to Part VII of the Local Government Act, 1933, there shall be substituted a reference to Part VIII of the Local Government (Scotland) Act, 1947.

7.—(1) If at any time during the period for which a local authority are entitled to possession of any land of which possession has been taken or retained compulsorily by virtue of an authorisation under this Act, the Minister is satisfied—

Determination
of possession
for purpose of
development
by owner.

- (a) that any person interested in the land desires to develop the whole or any part of the land to which the authorisation relates ;
- (b) that where planning permission is required under Part III of the Town and Country Planning Act, 1947, such planning permission has been granted or is deemed to have been granted under the said Part in respect of that development ; and
- (c) that the said person will, upon obtaining possession of the land, proceed without delay to execute any works necessary for the purposes of that development,

the Minister shall direct that the right of the local authority to retain possession of the land, or of that part of the land, as the case may be, shall be determined upon such date as may be specified in the direction :

Provided that the Minister shall not be required to give such a direction if the development in question consists only of the use of land for a period or periods not exceeding twenty-eight days in all in any calendar year, whether with or without the erection or placing of movable structures on the land for the purposes of that use.

(2) Where, on the date specified in a direction given under the foregoing subsection, a lease granted by the local authority under subsection (2) of section four of this Act is in force in respect of any land to which the direction relates, the term of the lease shall be determined on that date, or, where the direction relates to part only of the land comprised in the lease, shall be determined on that date in respect of that part of the land.

(3) In the application of this section to Scotland, there shall be substituted for the reference to Part III of the Town and Country Planning Act, 1947, a reference to Part II of the Town and Country Planning (Scotland) Act, 1947.

Compensation
for the
compulsory
acquisition
of land in
possession
of local
authority.

8.—(1) Where an interest in any land of which possession has been taken or retained compulsorily under this Act, is acquired compulsorily, in a case to which the Acquisition of Land (Assessment of Compensation) Act, 1919, applies, during the period for which the local authority are entitled to possession of the land, the following provisions shall have effect in relation to the calculation of any compensation payable in respect of the compulsory acquisition, that is to say—

- (a) where the notice to treat is given before the expiration of two years from the end of the war period within the meaning of section forty of the Requisitioned Land and War Works Act, 1945, Part VIII of that Act shall apply as if, during the period while the local authority were entitled to possession of the land as aforesaid, the land had been in the possession of a Minister or a person acting under the authority of a Minister by virtue of the exercise of emergency powers within the meaning of that Act; and
- (b) in any case, section fifty-four of the Town and Country Planning Act, 1947 (which regulates the compensation payable on the compulsory acquisition of requisitioned land) shall apply as if the land were, and had been during the period aforesaid, requisitioned land within the meaning of that Act.

(2) In the application of this section to Scotland, for the references to the Town and Country Planning Act, 1947, and to section fifty-four thereof, there shall be substituted respectively references to the Town and Country Planning (Scotland) Act, 1947, and to section fifty-one thereof.

Power of local
authority to
do work
without taking
possession.

9.—(1) If it appears to a local authority that the conditions specified in subsection (1) of section one of this Act are satisfied in the case of any land within their area (not being such land as is mentioned in subsection (2) of that section) but that it is unnecessary or inexpedient to obtain a lease of the land or take possession of the land compulsorily under this Act, the local authority may enter on the land and carry out thereon such works as appear to them to be necessary for securing that the land is put in a condition which is not detrimental to the amenities of the neighbourhood.

(2) A person authorised by a local authority to enter upon any land in pursuance of the power conferred by this section shall, if so required, produce evidence of his authority before so entering and shall not demand admission as of right to any land which is occupied unless twenty-four hours notice of the intended entry has been given to the occupier.

(3) Where entry is made upon any land under this section, any person interested in the land may recover from the local

authority compensation in respect of any depreciation in the value of his interest attributable to any damage occasioned by the exercise of the powers conferred by this section, and in respect of any disturbance of his enjoyment of the land so occasioned.

10.—(1) If during the period for which a local authority are entitled to possession of any land by virtue of a lease or authorisation under this Act, permission to develop the land is granted under Part III of the Town and Country Planning Act, 1947, in pursuance of an application made by the local authority or any person deriving title under them, that permission shall be granted for a limited period only in accordance with subsection (2) of section fourteen of that Act, and the period specified therein shall be the period for which the local authority are entitled as aforesaid to possession of the land.

Modification
of Town and
Country
Planning Act,
1947.

(2) If during the period aforesaid any development is carried out on the land in accordance with permission granted under Part III of the Town and Country Planning Act, 1947, otherwise than in pursuance of an application, the provisions of that Act shall apply in relation to the land as if that permission had been granted in accordance with the foregoing subsection in pursuance of such an application as is mentioned in that subsection.

(3) If, during the period for which a local authority are entitled to possession of any land by virtue of an authorisation under this Act, permission to develop the land is refused on an application made under Part III of the Town and Country Planning Act, 1947, by any person other than the local authority or a person deriving title under them, or is granted subject to conditions, in pursuance of such an application, then, for the purposes of section nineteen of that Act (which enables an owner of land in certain cases to require his interest to be purchased upon the refusal of planning permission or the grant of such permission subject to conditions), the person who, if the local authority were not so entitled, would be the owner of the land within the meaning of that Act shall be treated as if he were the owner of the land.

(4) In the application of this section to Scotland, subsection (3) shall not apply and for references to Part III of the Town and Country Planning Act, 1947, and to section fourteen of that Act, there shall be substituted respectively references to Part II of the Town and Country Planning (Scotland) Act, 1947, and to section twelve of that Act.

11.—(1) Where, under the War Damage Act, 1943, the appropriate payment in respect of war damage to a hereditament would, apart from this provision, be a payment of cost of works, War damage payments.

and the War Damage Commission are notified by a local authority that the authority propose to take a lease under this Act of land consisting of or forming part of the hereditament, or to apply for an authorisation under this Act in respect of such land, then if it appears to the Commission—

- (a) after consultation with any authority or person whose permission, approval or licence is required under any enactment, regulation or byelaw for the purposes of the carrying out of works for making good the war damage, that that permission, approval or licence has been granted or would be granted if applied for ; and
- (b) after consultation with all the owners of proprietary interests for the time being subsisting in the hereditament and of rentcharges (if any) to which it is subject and with any mortgagee of any such interest or rentcharge, that those works will not be carried out within a reasonable time.

the Commission may, notwithstanding any previous determination of the amount of the payment to be made under the said Act in respect of the damage to the hereditament, determine to make under that Act in respect of that damage any such payment as is authorised by subsection (1) of section thirteen of that Act.

(2) Subsection (2) of section thirteen of the War Damage Act, 1943 (which prescribes the material time in relation to a value payment made by virtue of that section), shall apply to any value payment made by virtue of the foregoing provisions of this section.

(3) For the purposes of section fourteen of the War Damage Act, 1943 (which provides for the conversion of cost of works payments into value payments on the compulsory acquisition of interests in land which has sustained war damage) the taking of possession of any land by virtue of an authorisation under this Act shall not be deemed to constitute the compulsory acquisition of an interest in that land.

Disposal of
rubble, etc.

12.—(1) Any materials removed from land by a local authority in the exercise of the powers conferred by section four or section nine of this Act may be dealt with or disposed of in such manner as the local authority think fit.

(2) Where any materials (not being materials severed from the land by the local authority) are removed as aforesaid, the local authority shall account to the owner in respect of the value of the materials after deducting the cost of the removal and disposal.

13. Any question of disputed compensation under section four or section nine of this Act shall be determined by the General Claims Tribunal constituted under the Compensation (Defence) Act, 1939, and sections seven and nine and subsection (2) of section eighteen of that Act shall apply accordingly. Settlement of disputes as to compensation.

14. Subsection (3) of section twelve of the Finance Act, 1946 (which relates to the suspension of justices' licences on the compulsory acquisition of licensed premises) shall have effect as if references in that subsection and in the First Schedule to that Act to the compulsory acquisition of premises included references to the taking possession of premises by a local authority by virtue of a lease or authorisation under this Act. Suspension of justices' licences.

15. Any notice required to be served under this Act by a local authority may be served— Service of notices.

- (a) on any person, by addressing it to him by name and delivering it to him or leaving it at, or sending it in a registered letter by post to, his usual or last-known place of abode ;
- (b) on any person being the occupier or the person entitled to possession of any premises which appear to the local authority to be separately occupied, by addressing the notice to "the occupier" or "the person entitled to possession" of the premises (describing them), and either by delivering it to some person on the premises or, if there is no person on the premises to whom it can be delivered, by affixing it to some conspicuous object on the premises ;
- (c) on all persons being entitled to possession of premises comprised in land which appears to the local authority to be unoccupied, by addressing the notice to "the persons entitled to possession" of the land (describing it), and by affixing it to some conspicuous object on the land.

16.—(1) If any person, without the consent of the person entitled to possession of the land, deposits any rubbish or waste material— Penalty for depositing rubbish on war damaged sites.

- (a) upon land of which a local authority are entitled to possession by virtue of a lease or authorisation under this Act ;
- (b) upon any unoccupied land which has sustained war damage,

he shall be guilty of an offence and liable on summary conviction to a fine not exceeding fifty pounds.

(2) Without prejudice to the foregoing subsection, any expenditure reasonably incurred by a local authority in removing (whether in the exercise of powers conferred by this Act or otherwise) any rubbish or material deposited by any person in contravention of that subsection may be recovered from him by that authority as a simple contract debt in any court of competent jurisdiction.

Interpretation. 17.—(1) In this Act the following expressions have the meanings hereby respectively assigned to them:—

“agricultural land” has the same meaning as in the Agriculture Act, 1947;

“church” means a place of worship within the meaning of the Places of Worship (Enfranchisement) Act, 1920, and “church site” shall be construed accordingly;

“easement” includes a liberty, privilege, right or advantage (including a natural right to support) annexed to land and adversely affecting other land;

“hereditament”, “mortgagee”, “proprietary interest”, “rentcharge” and “war damage” have the same meanings as in the War Damage Act, 1943;

“lease” includes an underlease and an agreement for a lease or underlease;

“local authority” means the council of a county, metropolitan borough, county borough or county district, and the Common Council of the City of London;

“the Minister” means the Minister of Health;

“works” includes the demolition, repair, or erection of buildings and the laying out and cultivation of gardens.

(2) Any reference in this Act to the period for which a local authority are entitled to possession of land by virtue of a lease or authorisation under this Act shall be construed as including a reference to any period during which a lease of the land granted by the local authority is in force.

(3) Unless the context otherwise requires, any reference in this Act to an enactment shall be construed as a reference to that enactment as amended or applied by any other enactment, including this Act.

(4) In the application of this section to Scotland, for subsection (1) there shall be substituted the following subsection:—

“(1) In this Act the following expressions have the meanings hereby respectively assigned to them:—

‘agricultural land’ has the same meaning as in the Agriculture (Scotland) Act, 1948;

'church' means a church or other building for religious worship and includes buildings ancillary thereto and a burial ground attached thereto or used in connection therewith, and 'church site' shall be construed accordingly ;

'hereditament', 'mortgagee', 'proprietary interest', 'rentcharge' and 'war damage' have the same meanings as in the War Damage Act, 1943 ;

'lease' includes a sub-lease ;

'local authority' means a county, town or district council ;

'the Minister' means the Secretary of State ;

'works' includes the demolition, repair or erection of buildings and the laying out and cultivation of gardens."

18.—(1) There shall be paid out of moneys provided by Parliament any increase attributable to the provisions of this Act in the Exchequer Equalisation Grant payable under Part I or Part II of the Local Government Act, 1948. Financial provisions.

(2) Any expenses incurred under this Act by the Common Council of the City of London shall be defrayed out of the general rate authorised to be levied by the Council.

19.—(1) This Act may be cited as the War Damaged Sites Act, Short title.
1949.

(2) This Act shall not extend to Northern Ireland.

SCHEDULE

PROCEDURE FOR AUTHORISING COMPULSORY TAKING Section 3. OR RETENTION OF POSSESSION

1.—(1) Any authorisation given for the purposes of section one or section two of this Act shall specify the land to which it relates, the date on which the local authority are authorised to take possession of the land and the period for which they are entitled to retain possession.

(2) In relation to an authorisation given for the purposes of section two of this Act, the foregoing sub-paragraph shall have effect as if the requirement to specify the date on which the local authority are authorised to take possession of the land were omitted.

2.—(1) Before the authorisation is given the local authority shall—

- (a) publish in one or more local newspapers circulating in the locality in which the land is situated a notice stating that

an application has been or is to be made to the Minister for the authorisation, and that any representations which any person desires to make must be made to the Minister in writing within fourteen days from the date of the publication of the notice ; and

- (b) serve on the person entitled to possession of the land a notice in writing stating that application has been or is to be made as aforesaid and that any representations which that person desires to make must be made to the Minister in writing within fourteen days from the service of the notice on him.

(2) Where any person on whom a notice is required to be served under the foregoing sub-paragraph is entitled to the land under a lease for a term which will expire or may be determined before the expiration of the period for which the local authority would be entitled to retain possession of the land in pursuance of the authorisation for which the application is made, a like notice shall be served on the person entitled to the reversion expectant on that lease and on the person entitled to the reversion expectant on any other lease of the land of which the term will expire or may be determined as aforesaid.

(3) Where the authorisation is to be given for the purposes of section two of this Act in respect of land of which the local authority are entitled to possession by virtue of a previous authorisation under this Act, the reference in sub-paragraph (1) of this paragraph to the person entitled to possession of the land shall be construed as a reference to the person entitled to the reversion expectant on the determination of the lease or, as the case may be, to the person who would be entitled to possession of the land apart from the previous authorisation.

3. Before giving the authorisation, the Minister shall consider any representations duly made to him, including any such objection as is mentioned in section three of this Act ; and as soon as may be after he has given the authorisation or decided to refuse it, or to postpone the giving of it under the said section three, the Minister shall send to any person who has made such representations, specifying an address for the purposes of this paragraph, notification thereof in a registered letter by post to the address specified.

4. In the application of this Schedule to Scotland—

- (a) in sub-paragraph (2) of paragraph 2, for the words from “shall be served” to the end of the sub-paragraph there shall be substituted the words “shall be served on the person who but for that lease would be entitled to possession of the land and on any person who but for any other lease of which the term will expire or may be determined as aforesaid would be entitled to possession of the land”;
- (b) in sub-paragraph (3) of the said paragraph 2, for the words from “entitled to the reversion” to the end of the sub-paragraph there shall be substituted the words “who would be entitled to possession of the land but for the lease or the previous authorisation”.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Acquisition of Land (Assessment of Compensation) Act, 1919	9 & 10 Geo. 5. c. 57.
Places of Worship (Enfranchisement) Act, 1920 ...	10 & 11 Geo. 5. c. 56.
Landlord and Tenant Act, 1927	17 & 18 Geo. 5. c. 36.
Local Government Act, 1933	23 & 24 Geo. 5. c. 51.
London Government Act, 1939	2 & 3 Geo. 6. c. 40.
Compensation (Defence) Act, 1939	2 & 3 Geo. 6. c. 75.
War Damage Act, 1943	6 & 7 Geo. 6. c. 21.
Requisitioned Land and War Works Act, 1945 ...	8 & 9 Geo. 6. c. 43.
Acquisition of Land (Authorisation Procedure) Act, 1946	9 & 10 Geo. 6. c. 49.
Finance Act, 1946	9 & 10 Geo. 6. c. 64.
Acquisition of Land (Authorisation Procedure) (Scotland) Act, 1947	10 & 11 Geo. 6. c. 42.
Local Government (Scotland) Act, 1947	10 & 11 Geo. 6. c. 43.
Agriculture Act, 1947	10 & 11 Geo. 6. c. 48.
Town and Country Planning Act, 1947	10 & 11 Geo. 6. c. 51.
Town and Country Planning (Scotland) Act, 1947 ...	10 & 11 Geo. 6. c. 53.
Local Government Act, 1948	11 & 12 Geo. 6. c. 26.
Agriculture (Scotland) Act, 1948	11 & 12 Geo. 6. c. 45.

CHAPTER 85

Distribution of German Enemy Property Act, 1949

ARRANGEMENT OF SECTIONS

Section

1. Collection, realisation and distribution of German enemy property.
2. Offences.
3. Arrangements for the resolution of conflicting claims to German property.
4. German property in colonies and other territories.
5. Orders in Council and orders.
6. Exercise of powers by the Board of Trade.
7. Expenses and receipts.
8. Interpretation.
9. Application to Scotland.
10. Application to Northern Ireland.
11. Provisions as to Isle of Man and Channel Islands.
12. Short title.

An Act to provide for the collection and realisation of German enemy property and for the distribution of the proceeds thereof; and for purposes connected with the matters aforesaid. [16th December 1949.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—